

# STATE OF NEW YORK

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2612--B

Cal. No. 1328

2025-2026 Regular Sessions

## IN SENATE

January 21, 2025

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Introduced by Sen. ADDABBO -- read twice and ordered printed, and when printed to be committed to the Committee on Racing, Gaming and Wagering -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the racing, pari-mutuel wagering and breeding law, in relation to welfare, medical, and retirement plans provided by a horsemen's organization in the absence of contractual obligations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 318 of the racing, pari-mutuel wagering and breed-  
2 ing law is amended by adding a new subdivision 6 to read as follows:

3 6. Notwithstanding any provision of law to the contrary, in the  
4 absence of a contract between the licensed harness racing corporation or  
5 association and the representative horsemen's organization, the state  
6 gaming commission shall require such corporation or association to pay  
7 to the horsemen's organization an amount determined in accordance with  
8 the previously negotiated contract for welfare, medical, or retirement  
9 plans, including any associated costs, provided by the horsemen's organ-  
10 ization to participants in racing at the licensed harness racing facil-  
11 ity. The amounts shall be paid monthly from the horsemen's gross purse  
12 enhancement amount from video lottery gaming.

13 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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